

STRATEGIC BRIEFING & MEMORANDUM

Surveillance Regulation Framework

TO: The Board of County Commissioners, St. Johns County, Florida

FROM: **Debra Campbell & Concerned Citizens of St. Johns County**

DATE: September 2026

SUBJECT: Executive Summary – Ordinance No. 2026-____: The Automated Tracking, Privacy, and Data Sovereignty Ordinance

1. EXECUTIVE SUMMARY & LITIGATION PROTECTION

The rapid expansion of commercial, algorithm-driven mass tracking grids poses a direct threat to the constitutional privacy of St. Johns County residents, visitors, and taxpayers. Private tech corporations increasingly exploit public rights-of-way and local infrastructure to harvest massive volumes of behavioral data. This public-domain metadata is routinely sold to third parties or used to train proprietary artificial intelligence models without local oversight or citizen consent.

This Ordinance establishes strict local accountability, fiscal transparency, and data sovereignty controls over automated surveillance technologies. It aligns county operations with the privacy standards established by the United States Supreme Court in *Chatrue v. United States* (2026), which affirmed that continuous, automated tracking of digital location footprints demands robust judicial oversight.

2. CORE OPERATIONAL REMEDIES

To ensure absolute legal durability and protect the County from structural litigation, this Ordinance relies on the County's established authority as a **market participant, land manager, and fiscal steward**. Rather than regulating law enforcement tactics directly, the ordinance enforces accountability through four operational pillars:

- **Property-Based and Fiscal Oversight:** The ordinance asserts complete legislative control over County-owned real estate, rights-of-way, utility poles, and County-allocated procurement funds. By regulating the *use of County property and funds* under Article VIII, Section 1(b) of the Florida Constitution, the text completely respects the operational autonomy of independently elected constitutional officers (such as the Sheriff). It ensures the County does not illegally dictate law enforcement tactics, but instead strictly governs its own assets and expenditures.
- **The "Clean Hands" Corporate Procurement Rule:** The Ordinance bans corporate vendors from bidding on or maintaining lucrative County contracts if they deploy unpermitted mass tracking

networks to private enclaves (such as local HOAs or commercial hubs) within county lines. Traditional code enforcement cannot easily penalize vendors on private land under Chapter 162, Florida Statutes. Shifting the penalty to contractual termination and a mandatory 3-year corporate debarment hits violating corporations directly in their procurement streams.

- **Eradicating the "Exigent Circumstances" Loophole:** While the Ordinance preserves a narrow exception for life-threatening emergencies, it institutes a mandatory 48-hour post-hoc reporting protocol. Any agency utilizing County-connected data architecture without a warrant must file a sworn justification report under penalty of perjury. If an agency fails to file this report within 48 hours, the County Administrator is mandated to immediately freeze the data stream and technical funding allocated to that specific surveillance tool.
- **Direct Citizen Standing and Fee Shifting:** The ordinance grants permanent residents of St. Johns County immediate standing to file a civil action (such as a Writ of Mandamus or injunctive relief) in the Seventh Judicial Circuit Court to compel the enforcement of this law. To ensure everyday taxpayers can afford to hold powerful entities accountable, a successful citizen plaintiff is entitled to recover reasonable attorney's fees and litigation costs from the violating vendor or the County.

ORDINANCE NO. 2026-_____

AN ORDINANCE OF ST. JOHNS COUNTY, FLORIDA, REGULATING THE INSTALLATION, DEPLOYMENT, AND OPERATION OF AUTOMATED TRACKING AND SURVEILLANCE EQUIPMENT ON COUNTY PROPERTY, RIGHTS-OF-WAY, AND COUNTY-FUNDED PLATFORMS; PROHIBITING SUSPICIONLESS MASS AUTOMATED DATA CAPTURE ACCESSED VIA COUNTY FUNDS OR PROPERTY WITHOUT EXPLICIT BOARD APPROVAL; ESTABLISHING DEFINITIONS AND PROPERTY-BASED SOVEREIGNTY CONTROLS; ESTABLISHING COUNTY FUNDING CONTROLS AND WARRANT MATRICES FOR DATA PROCESSING CONTRACTS; PROVIDING EXEMPTIONS FOR STANDARD OFFICIAL ACCOUNTABILITY GEAR; PROVIDING FOR PROPERTY-BASED CONTRACTUAL PENALTIES, RIGHT-OF-WAY PERMIT REVOCATIONS, CORPORATE DEBARMENT, AND CITIZEN RECOURSE; PROVIDING FOR SEVERABILITY; AND PROVIDING AN EFFECTIVE DATE.

SECTION 1: FINDINGS, PURPOSE, AND LEGAL STANDARDS

WHEREAS, the Board of County Commissioners of St. Johns County, Florida, possesses home rule authority under Article VIII, Section 1 of the Florida Constitution and Chapter 125, Florida Statutes, to manage, lease, protect, and regulate the use of County property, structures, public rights-of-way, and financial assets for the safety, health, and welfare of its citizens; and

WHEREAS, Article VIII, Section 1(b) of the Florida Constitution vests the care, custody, and method of disbursing county funds exclusively within structures provided by law, granting the Board of County Commissioners final budgetary authority over local appropriations, procurement streams, and corporate technology vendor agreements; and

WHEREAS, the Board recognizes that while the Sheriff of St. Johns County is an independently elected constitutional officer under Article VIII, Section 1(d) of the Florida Constitution possessing independent law enforcement operational authority, the Board of County Commissioners maintains independent proprietary control over County real estate, right-of-way permit issuance, and County-funded software databases; and

WHEREAS, the United States Supreme Court in *Chatrue v. United States*, 609 U.S. ____ (2026) established that digital location footprints gathered by tech networks are subject to intense Fourth Amendment privacy protections, affirming that automated, continuous digital dragnet tracking constitutes a search that demands robust judicial oversight and individualized probable cause; and

WHEREAS, Article I, Section 23 of the Florida Constitution guarantees every natural person the fundamental right to be let alone and free from governmental intrusion into their private life; and

WHEREAS, the Board finds that the unmitigated commercial expansion of automated tracking systems on public corridors poses an immediate threat to local data sovereignty, as private corporations increasingly exploit public infrastructure data to feed proprietary artificial intelligence models, commercial machine-learning arrays, and large language models without taxpayer consent; and

WHEREAS, the Board elects to act as a strict market participant and land manager, using its procurement rules, contractual "Clean Hands" requirements, and right-of-way permitting authority rather than extraterritorial police code enforcement to penalize corporate vendors who compromise the privacy landscape of St. Johns County; and

WHEREAS, the Board finds that establishing strict, transparent, post-hoc emergency reporting requirements for non-warrant location tracking ensures accountability while maintaining functional access during catastrophic or life-threatening crises.

NOW, THEREFORE, BE IT ORDAINED BY THE BOARD OF COUNTY COMMISSIONERS OF ST. JOHNS COUNTY, FLORIDA:

- **1. Local Legislative Control:** The Board of County Commissioners of St. Johns County recognizes that the rapid deployment of automated, algorithm-driven mass tracking systems on public corridors impacts the fundamental privacy, civil liberties, and data sovereignty of local residents and taxpayers.
- **2. Regulatory & Fiscal Oversight:** The purpose of this ordinance is to assert strict regulatory oversight, fiscal accountability, and local legislative control over the physical county property, county-funded networks, and mobile assets owned or subsidized by the County used to catalog the movements of vehicles and persons within county lines.
- **3. Constitutional Alignment:** This Board notes that suspicionless mass digital tracking must align with the constitutional baselines affirmed by the United States Supreme Court in *Chatrpie v. United States* (2026), which established that accessing compiled digital location histories from third-party networks constitutes a Fourth Amendment search traditionally demanding individualized judicial oversight.

SECTION 2: DEFINITIONS

For the purposes of this Ordinance, the following terms, phrases, words, and their derivations shall have the meaning given herein, regardless of the marketing, commercial branding, or proprietary naming conventions used by the manufacturing corporation or vendor:

- **Automated Tracking and Surveillance Equipment:** Any electronic, digital, algorithmic, optical, or mechanical device, or suite of integrated hardware and software elements, capable of autonomously capturing, logging, analyzing, processing, or transmitting identifying metadata, biometric features, or location profiles of individuals or vehicles without continuous, direct human intervention for each discrete data point. This term applies to all devices executing data capture locally via "edge computing" or remotely via cloud-based processing networks.
- **Suspicionless Mass Automated Data Capture:** The systematic, non-individualized harvesting, intercepting, or continuous background monitoring of public spaces, corridors, or communications to log identifiers (including but not limited to license plates, facial geometry, unique MAC addresses, IMSI numbers, or device radio signatures) where no specific, pre-existing individualized probable cause or judicial warrant exists targeting a particular person or asset.
- **County Property and Rights-of-Way:** Any land, real estate, structural asset, building, facility, or physical corridor owned, leased, operated, or maintained by St. Johns County, including but not limited to public roads, highways, intersections, sidewalks, utility poles, easements, and county-managed parklands.
- **County-Funded Platforms:** Any mobile or stationary equipment, machinery, hardware asset, or vehicle asset owned, leased, directly subsidized, or operated by St. Johns County or its contractors using County funds, including but not limited to public works machinery, transit buses, county sanitation or garbage trucks, and unmanned aircraft systems (drones). *This term explicitly excludes private vehicles-for-hire, rideshare networks, or commercial transit lines operating under state-preempted transportation structures.*
- **Automated License Plate Reader (ALPR) and Vehicle-Identifier Arrays:** Any camera, sensor, software, or optical character recognition (OCR) module used to automatically scan, photograph, read, record, or digitize vehicle license plates, tracking numbers, hazardous material placards, make-and-model profiles, or vehicle registration markers, regardless of whether the captured data is cross-referenced against a law enforcement hot-list in real-time or stored historically.

- **Biometric Profile and Facial Recognition Camera Assembly:** Any stationary or mobile image-capture system, video stream, or digital sensor linked to automated software capable of generating mathematical templates of human facial geometry, gait analysis, iris patterns, or unique physiological characteristics, or matching individuals against watchlists, historical databases, or generative AI training arrays.
- **Passive Network and Signal-Interception Surveillance System:** Any infrastructure—including but not limited to Bluetooth sniffers, Wi-Fi MAC address logging arrays, cellular site simulators ("Stingrays"), international mobile subscriber identity (IMSI) catchers, or radio frequency identification (RFID) readers—designed to record or intercept the continuous movement, path, pattern, or specific coordinates of transit vectors, personal smartphones, or individual travelers within county boundaries.
- **Multi-Sensor Environmental Tracking Modules:** Any device marketed primarily as "smart city" infrastructure, environmental monitors, automated streetlights, or acoustic gunshot detection grids (e.g., ShotSpotter or similar acoustic arrays) that possess secondary, latent, or software-activatable capabilities to log, track, or record human movement, vehicular transit patterns, or ambient audio metrics outside a targeted judicial warrant.
- **Data Sovereignty:** The absolute legislative and structural control over all information generated or harvested via County property or funded arrays, prohibiting the transfer of public-space data to external corporate third parties that claim proprietary ownership, intellectual property licenses, or the right to utilize public-domain metadata to train private artificial intelligence models, commercial machine-learning algorithms, or proprietary large language models.
- **Judicial Warrant:** A formal legal order issued and signed by a neutral and detached judge of competent jurisdiction within the State of Florida, supported by a sworn oath or affirmation demonstrating individualized probable cause that a specific crime has been, is being, or is about to be committed, explicitly detailing the particular device or travel history to be searched or seized.
- **Exigent Circumstances:** A narrowly tailored emergency exception where a public safety officer possesses an objectively reasonable basis to believe that an immediate threat of death or serious physical injury to a specific individual requires instantaneous tracking, and where the time required to secure a judicial warrant would directly result in a catastrophic loss of life or severe physical harm.

SECTION 3: PROHIBITION OF DEPLOYMENT VIA COUNTY RIGHTS-OF-WAY AND COUNTY FUNDS

No automated license plate readers (ALPRs), facial recognition camera assemblies, or vehicle-tracking surveillance systems may be physically mounted, placed, sustained, or executed utilizing County property, utility poles, county-maintained rights-of-way, or County financial appropriations without:

- 1. A standalone public hearing advertised to the citizenry at least fourteen (14) days in advance.
- 2. A formal, explicit majority vote of approval by the St. Johns County Board of County Commissioners during a regular legislative session.

This prohibition applies universally to all stationary installations requiring a county right-of-way permit, county land lease, or county infrastructure hookup.

SECTION 4: CLOSING THE MOBILE DRAGNET LOOPHOLE (GARBAGE TRUCKS, TRANSIT, AND DRONES)

To prevent the circumvention of stationary tracking rules through mobile applications, the restrictions, public hearings, and voting requirements detailed in Section 3 shall apply to:

- 1. Any automated tracking or surveillance device attached to County-Funded Platforms, including public works machinery, county-contracted sanitation and garbage trucks, public transit assets, and county-operated unmanned aircraft systems (drones).
- 2. **Proprietary Procurement Restriction:** The County shall not enter into any contract, lease, or subsidy agreement with an external entity—including transport systems or public service providers—if that provider deploys automated mass tracking hardware on vehicles executing County-funded services, unless approved under the strict guidelines of Section 3.

SECTION 5: EXPLICIT EXEMPTIONS FOR INDIVIDUAL OFFICER SAFETY GEAR

- 1. **Permitted Tools:** This ordinance shall not apply to standard, non-automated dashboard video cameras (dash cams), in-car cabin recorders, or body-worn cameras used exclusively to record individual officer-citizen interactions, active traffic stops, and direct crime scenes for evidence collection and public accountability.

- **2. Surveillance Integration Ban:** The exemption in subsection (1) is immediately voided if a dashboard or body-worn camera system is outfitted with automated license plate recognition (ALPR) software, automated biometric tracking modules, or suspicionless background database logging capabilities. Any mobile camera transformed into an automated mass tracking device shall be subject to the full restrictions, public votes, and warrant matrices required by this Ordinance.

SECTION 6: DATA SOVEREIGNTY AND THE JUDICIAL WARRANT MATRICES

The Board of County Commissioners shall exercise its proprietary control over County real estate and county financial distributions. The Board shall not grant a right-of-way permit, clear a real estate lease, or fund a software/hardware procurement contract for any surveillance architecture unless the vendor and using agency legally verify compliance with the following privacy controls:

- **1. Judicial Warrant Requirement:** No historical tracking data, vehicle travel routes, or biometric data harvested via County property or funded corridors may be queried, reviewed, or cross-referenced unless a valid Judicial Warrant has been produced and logged.
- **2. Exigent Circumstances Post-Hoc Reporting Protocol:** To ensure the emergency exception is reserved strictly for life-threatening crises and not used as an administrative workaround, any agency utilizing data streams or tracking hardware connected to County property or County funding under a claim of *Exigent Circumstances* must adhere to the following reporting protocol:
 - **Mandatory Reporting Window:** Within forty-eight (48) hours of the initial data query or tracking activation, the extracting agency must file a sworn, written *Exigent Tracking Justification Report* with the Clerk of the Board of County Commissioners.
 - **Required Contents:** The report must be signed under penalty of perjury by the commanding officer or supervisor who authorized the emergency action, and must include the precise timestamp and duration of the query; the specific identifier targeted; a detailed statement of the objectively reasonable facts showing an immediate threat of death or serious physical injury; and an explanation of why seeking a warrant would have caused catastrophic harm.
 - **Public Logging:** The Clerk of the Board shall maintain a centralized, publicly accessible digital registry of all reports. To protect active investigations, records may be temporarily redacted for up to thirty (30) days, after which basic metadata must be made public.
 - **Funding Ceasefires:** If an agency fails to submit the report within 48 hours, the County Administrator shall immediately suspend that agency's access to County-funded data portals and freeze any active County funding allocated to that specific surveillance tool.

SECTION 7: PROCUREMENT PENALTIES, DEBARMENT, AND CITIZEN ENFORCEMENT

Because the regulatory authority of this Ordinance relies on the County's proprietary power as a market participant, property owner, and contracting authority, violations shall be handled through strict commercial and administrative remedies rather than standard Chapter 162 code enforcement citations on private land.

- **1. The "Clean Hands" Procurement Rule:** Any corporate vendor or technology contractor that installs, provisions, or links unauthorized Automated Tracking and Surveillance Equipment to private entities (such as HOAs or commercial hubs) inside St. Johns County shall be deemed in breach of the County's commercial integrity requirements.
- **2. Administrative Penalties:** Upon a finding by the Board of County Commissioners that a corporate contractor has deployed unpermitted mass tracking networks locally, the County shall initiate:
 - Immediate termination of any active County contracts with said vendor.
 - A mandatory minimum three (3) year corporate debarment, prohibiting the vendor or its subsidiaries from bidding on County contracts or receiving County funding streams.
 - Instant revocation of any right-of-way or utility pole attachment permits tied to the vendor's tracking footprint.
- **3. Citizen Standing and Private Right of Action:** Any citizen and permanent resident of St. Johns County shall have immediate standing to bring a civil action in the Seventh Judicial Circuit Court of Florida against St. Johns County, its administrative departments, or any non-compliant corporate vendor to compel compliance with this Ordinance.
- **4. Remedies Available:** A citizen plaintiff may petition the court for Writs of Mandamus to compel contract termination; Injunctive Relief ordering physical removal of unpermitted hardware from County property; and Declaratory Judgments voiding contracts passed in violation of public vote rules.
- **5. Recovery of Fees:** If a resident successfully proves a violation of this Ordinance in a court of law, the County or the violating vendor shall be liable for the plaintiff's reasonable attorney's fees, expert witness fees, and litigation costs, subject to Article X, Section 13 of the Florida Constitution.

SECTION 8: SEVERABILITY

If any section, subsection, sentence, clause, phrase, or portion of this Ordinance is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such portion shall be deemed a

separate, distinct, and independent provision, and such holding shall not affect the validity of the remaining portions hereof.

SECTION 9: EFFECTIVE DATE

This Ordinance shall take effect immediately upon filing with the Department of State of the State of Florida.